

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #15	CCRB Case #: 201605408	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/21/2016 11:30 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 12/21/2017	Precinct: 105		
Date/Time CV Reported Wed, 06/22/2016 11:44 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 06/22/2016 11:44 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan Hoffmann	29755	950591	105 PCT
2. SGT Mark Ward	4696	942687	105 PCT
3. POM Donmartin Atienza	24584	952429	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ryan Hoffmann	Abuse: Police Officer Ryan Hoffmann stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Ryan Hoffmann	Abuse: Police Officer Ryan Hoffmann searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . SGT Mark Ward	Abuse: Sergeant Mark Ward searched the vehicle in which § 87(2)(b) was an occupant.	C . Substantiated
D . POM Ryan Hoffmann	Abuse: Police Officer Ryan Hoffmann refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated
E . POM Donmartin Atienza	Abuse: Police Officer Donmartin Atienza refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated
F . SGT Mark Ward	Abuse: Sergeant Mark Ward refused to provide his name and shield number to § 87(2)(b)	F . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB in-person on June 22, 2016.

On June 21, 2016, at approximately 11:30pm, § 87(2)(b) was stopped while exiting his parked vehicle in front of § 87(2)(b) in Queens by PO Ryan Hoffmann, Sergeant Mark Ward, and PO Donmartin Atienza of the 105th Precinct (**Allegation A**). PO Hoffmann instructed § 87(2)(b) to get out of his vehicle and placed him in handcuffs. PO Hoffmann and Sgt. Ward allegedly searched § 87(2)(b)'s vehicle (**Allegations B and C**).

After searching the vehicle, PO Hoffmann issued § 87(2)(b) a summons for an unregistered vehicle. At the end of the incident, § 87(2)(b) asked for the officers' names and shield numbers. All three officers allegedly failed to provide their names and shield numbers to § 87(2)(b) as requested (**Allegations D, E, and F**).

Video footage was provided by § 87(2)(b). The camera was located on a neighbor's home and shows the entire incident. The footage is grainy, in black and white, and has no sound. It is split into four clips and has a continuous timestamp (See BR 11 for part 1, BR 03 for part 2, BR 12 for part 3, and BR 13 for part 4).

Mediation, Civil and Criminal Histories

- The complaint was deemed unsuitable for mediation § 87(2)(g)
- A FOIL request was filed on July 6, 2016, the results of which indicated that no notices of claim were filed in regards to this incident (BR 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has seven prior CCRB complaints. § 87(2)(b)
- PO Hoffmann has been a member of the NYPD for five years and has been the subject of 12 prior CCRB allegations involving six cases. Three of these allegations were

substantiated against PO Hoffmann: Case # 201403154(Frisk) and 201601157(Refusal to provide name/shield number and Discourtesy-Demeanor/Tone). For the substantiated frisk allegation the Board recommended Formalized Training. The NYPD disposition was Command Level Instruction. For the substantiated allegations of refusal to provide name/shield and discourteous demeanor/tone, the Board recommended Command Discipline B. As of the date of this report, the NYPD has not issued its disposition.

- Sgt. Ward has been a member of the NYPD for 10 years and has been the subject of 21 prior allegations involving eight cases. Five of these allegations were substantiated against Sgt. Ward: Case # 201204875(Strip-search) and 201601157(Vehicle search, threat of summons, refusal to provide name/shield, and seizure of property). For the substantiated allegation of strip-search the Board recommended Charges. The NYPD disposition was Command Discipline B. For the substantiated allegations of vehicle search, threat of summons, refusal to provide name/shield, and seizure of property the Board recommended Command Discipline B. As of the date of this report, the NYPD has not issued its disposition.
- PO Atienza has been a member of the NYPD for four years and has been the subject of one prior allegation in one case. The allegation was exonerated.
- PO Hoffmann and Sgt. Ward were recently involved in Case #201601157 § 87(2)(g) [REDACTED]. In the prior incident, Sgt. Ward and PO Hoffmann stopped a vehicle and Sgt. Ward conducted a vehicle search. § 87(2)(g) [REDACTED], Sgt. Ward denied searching that vehicle. However, the investigation found that Sgt. Ward had conducted a more intrusive search. In addition both PO Hoffmann and Sgt. Ward refused to provide their name or shield numbers to the victim. This case has been closed by the CCRB. The vehicle stop allegation against both officers was unsubstantiated. The refusal to provide name and shield and discourtesy allegations against PO Hoffmann were substantiated. The vehicle search, threat of summons, refusal to provide name and shield, and seizure of property allegations against Sgt. Ward were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) [REDACTED] testified that the search of his vehicle took place while he was facing away and thus he could not determine which officers searched the vehicle and what areas they searched. Via PO Hoffmann's testimony—and confirmed by the video—it is undisputed that PO Hoffmann conducted a search of the vehicle. The video also shows an officer, identified by the investigation as Sgt. Ward, enter the vehicle. Although the video is grainy and does not show the officers' faces, Sgt. Ward was identified as this officer based on his testimony about his positioning during the incident. At 22:16:28, Sgt. Ward can be seen ducking down near the driver's entry of § 87(2)(b) [REDACTED]'s vehicle. At 22:16:40, there is movement inside the vehicle. At 22:16:50 Sgt. Ward opens the rear passenger door. When Sgt. Ward was presented with the video footage during his CCRB interview and asked whether he could identify himself as the officer in question, he stated that this officer's actions and location were consistent with his memory of his own

Allegation B –Abuse of Authority: Police Officer Ryan Hoffmann searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Hoffmann searched § 87(2)(b)'s vehicle after he was removed and detained behind the car. § 87(2)(b) reported that the vehicle search occurred, video footage confirms PO Hoffmann's movements in the vehicle, and PO Hoffmann acknowledged conducting the search. § 87(2)(g)

§ 87(2)(g)

PO Hoffmann testified that upon arrival of an additional unit, called because PO Hoffmann and his partners had run out of summons, § 87(2)(b) began yelling that he did not want to go to jail and that the officers could search his entire vehicle. PO Hoffmann stated that he then leaned his upper body into the driver's side and looked around with his flashlight (BR 05).

Upon viewing the video, PO Hoffmann conceded that when he appeared to enter the vehicle to conduct his search, he had not yet called for the additional unit. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Sgt. Ward corroborated PO Hoffmann's statement that when the additional unit arrived at the scene, § 87(2)(b) reacted by yelling that the officers could search his vehicle. However, Sgt. Ward stated that PO Hoffmann's search of § 87(2)(b)'s vehicle occurred prior to the additional unit responding and § 87(2)(b) providing consent. Sgt. Ward testified that he did not instruct PO Hoffmann to search the vehicle (BR 06).

§ 87(2)(g) PO Atienza testified that he could not recall PO Hoffmann's search, § 87(2)(b) PO Atienza testified that § 87(2)(b) did not have any reaction to the arrival of the additional unit, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

In his testimony, § 87(2)(b) stated he did not give consent to the officers to search his vehicle at any point (BR 01).

§ 87(2)(g)

PO Hoffmann testified that § 87(2)(b) was disgruntled at the stop and was grinding his teeth and rocking back and forth. However when PO Hoffmann placed § 87(2)(b) in handcuffs there was no resistance by § 87(2)(b) PO Hoffmann testified that while he had some suspicion that § 87(2)(b) may have possessed a weapon, it was largely based on prior knowledge of § 87(2)(b)'s criminality. PO Hoffmann's knowledge was based on a prior interaction with § 87(2)(b) several months prior, at the 105th Precinct station house. PO

Hoffmann stated he had causally talked with § 87(2)(b) about his issues with local gangs and § 87(2)(b) revealed he had been arrested on gun charges before.

An officer may search a vehicle only if there is probable cause that it contains contraband, weapon, or evidence of a crime. An officer breaching the plane of the car doorway with his body or his arm to reach inside the vehicle, even if to obtain a better visual of the interior of the car, does constitute a search of that vehicle People v. Hernandez, 238 A.D.2d 131 (1997) (BR 14).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation C –Abuse of Authority: Sergeant Mark Ward searched the vehicle in which § 87(2)(b) was an occupant.

As discussed, after being escorted to the area behind his vehicle, § 87(2)(b) alleged that officers searched his vehicle. § 87(2)(b) could not explicitly state which officers searched the vehicle and what areas they searched because he was facing away from his vehicle.

Sgt. Ward testified that he did not remember entering the vehicle. During Sgt. Ward’s testimony he repeatedly responded to questions regarding his suspicions by stating that § 87(2)(b) was a “bad guy.” Sgt. Ward explained that he was referring to PO Hoffmann’s knowledge that § 87(2)(b) had been involved in past crimes and gang activity. Sgt. Ward testified that he did not obtain the specific information PO Hoffmann had regarding § 87(2)(b)’s criminality until after the incident. However, Sgt. Ward stated that PO Hoffmann gave him a “nod” at the beginning of the interaction, which Sgt. Ward took to mean that § 87(2)(b) was a “bad guy.” When asked how he made that determination from the non-verbal signal, Sgt. Ward cited his year of experience working with PO Hoffmann (BR 06).

When asked whether he had suspicion that the car was stolen, Sgt. Ward stated that he had suspicion of § 87(2)(b) in general. He reiterated his belief that § 87(2)(b) was a “bad guy.” He did not explicitly state particularized suspicion that the car was stolen.

Sgt. Ward testified that he did think it was possible § 87(2)(b) possessed weapons in the vehicle, based on his perception of § 87(2)(b) as a “bad guy.” The only particularized reason Sgt. Ward gave for his suspicion was that he had observed § 87(2)(b) shifting his weight side to side in his seat while driving behind him prior to the stop. He did not communicate this observation to any other officers in the vehicle and no other officers mentioned observing this. It was also late at night and PO Atienza described § 87(2)(b)’s vehicle as having a heavily tinted rear window, § 87(2)(g)



201605408_20160826_1154_DM.mp4

In the video footage, Sgt. Ward can be seen walking to the driver's door of the vehicle at 22:16:23. Sgt. Ward then ducked down around the driver's door of the vehicle at 22:16:28. Until 22:16:39, Sgt. Ward can be seen shining his flashlight inside of the vehicle. At 22:16:40, Sgt. Ward reaches into the vehicle with his arm. It is not clear what he is reaching for, however it appears to be in the middle or passenger side of the car (BR 02. See BR 03 for full video and BR 04 for the transcription).

Sgt. Ward asked for a recess when the investigator informed him that there was video footage. After viewing the footage, Sgt. Ward stated that he had checked the VIN in the windshield, the driver's door, and a rear door. Sgt. Ward had not mentioned checking the VIN until viewing the footage.

An officer may search a vehicle only if there is probable cause that it contains contraband, weapon, or evidence of a crime. An officer breaching the plane of the car doorway with his body or his arm to reach inside the vehicle, even if to obtain a better visual of the interior of the car, does constitute a search of that vehicle People v. Hernandez, 238 A.D.2d 131 (1997) (BR 14).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED] It is therefore recommended that
Allegation C be closed as **substantiated**.

Allegation D –Abuse of Authority: Police Officer Ryan Hoffmann refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) [REDACTED] alleged that he requested the name and shield number for PO Hoffmann, which PO Hoffmann failed to provide.

§ 87(2)(b) [REDACTED] testified that at the end of the incident, he verbally asked all the officers for their names and shield numbers. PO Hoffmann told him that he could find his name and shield number on the summons that he had just issued § 87(2)(b) [REDACTED]. § 87(2)(b) [REDACTED] testified that PO Hoffmann's name was illegibly written on the summons (BR 01).

After the incident, § 87(2)(b) [REDACTED] travelled via cab to the 105th Precinct station house to obtain the officers' names. At the station house he was able to obtain PO Hoffmann's and Sgt. Ward's name.

PO Hoffmann testified that § 87(2)(b) [REDACTED] asked him for his name and shield during their initial interaction. PO Hoffmann stated that he verbally provided his name and shield number at that time (BR 05).

Upon the investigation's receipt of the summons, it was observed that PO Hoffmann's name is in fact illegible (BR 09).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E –Abuse of Authority: Police Officer Donmartin Atienza refused to provide his name and shield number to § 87(2)(b)

Allegation F –Abuse of Authority: Sergeant Mark Ward refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that PO Atienza and Sgt. Ward refused to provide their name and shield numbers when asked.

§ 87(2)(b) testified that he verbally asked all the officers for their names and shield numbers at the end of the incident. He stated that after asking for the information, all the officers walked away. § 87(2)(b) stated that he believed that the officers all heard him, although only PO Hoffmann replied (BR 01).

After the incident, § 87(2)(b) travelled via cab to the 105th Precinct station house to obtain the officers' names. At the station house he was able to obtain PO Hoffmann's and Sgt. Ward's name.

Sgt. Ward testified that at no point during the incident did § 87(2)(b) ask him for his name or shield number. He also stated that at no point did he hear § 87(2)(b) ask any other officer for their name or shield number. Sgt. Ward did mention the interaction with § 87(2)(b) at the station house in which Sgt. Ward provided his name and shield number (BR 06).

PO Atienza also stated that he was not asked by § 87(2)(b) for his name or shield number. PO Atienza also did not hear § 87(2)(b) ask any other officer for their name or shield (BR 07).

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

Squad: 15

Investigator: _____

	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date